

this Court's broad holdings concerning the immunity of *congressional* papers from outside scrutiny. The Constitution, of course, expressly grants immunity to Members of Congress as to any "Speech or Debate in either House . . ."; yet the Court has refused to confine that Clause literally "to words spoken in debate." *Powell v. McCormack*, 395 U. S. 486, 502 (1969). Congressional papers, including congressional reports, have been held protected by the Clause in order "to prevent intimidation [of legislators] by the executive and accountability before a possibly hostile judiciary." *Ibid.* In a word, to preserve the constitutionally rooted independence of each branch of Government, each branch must be able to control its own papers.

Title I is an unprecedented departure from the constitutional tradition of noncompulsion. The statute commands the head of a *legislatively* created department to take and maintain custody of appellant's Presidential papers, including many purely personal papers wholly unrelated to any operations of the Government. Title I does not concern itself in any way with materials belonging to departments of the Executive Branch created and controlled by Congress.

The Court brushes aside the fundamental principle of noncompulsion, abandoning outright the careful, previously unchallenged holdings of this Court in *Mellon*, *O'Donoghue* and *Humphrey's Executor*. In place of this firmly established doctrine,⁶ the Court substitutes, without analysis, an ill-defined

⁶ The Court's references to the historical understanding of separation-of-powers principles omit a crucial part of that history. Madison's statements in *The Federalist* No. 47 as to one department's exercising the "whole power" of another department do not purport to be his total treatment of the subject. *The Federalist* No. 48, two days later, states the central theme of Madison's view:

"It is equally evident, that neither [department] ought to possess directly or indirectly, an overruling influence over the others in the *administration of their respective powers*." *The Federalist* No. 48, p. 332 (J. Cooke ed. 1961). (Emphasis supplied.)

Indeed, Madison expressly warned at length in No. 48 of the inevitable